

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:

DIA NO. 99DPHSW003

CONNIE M. LEMONT

FINDINGS OF FACT,
CONCLUSIONS OF LAW,
DECISION AND ORDER

On December 29, 1998, the Iowa Board of Social Work Examiners (Board) denied the application of Connie M. LeMont (Applicant) for a license to practice social work at the bachelor's level. The Applicant appealed, and a Notice of Hearing was issued on March 1, 1999.

The hearing was held on July 12, 1999 at 1:00 p.m. in the fifth floor conference room, Lucas State Office Building, Des Moines, Iowa. The following members of the Board were present for the hearing: James Yeast, L.M.S.W. Chairperson; Mark Smith, L.I.S.W.; Lance Clemens, L.I.S.W.; Janice McCoy, L.B.S.W.; Erlene Veverka and Monsignor Robert Schmidt, Public Members. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, served as the presiding officer for the Board. The Applicant appeared for the hearing and was not represented by counsel. The state was represented by Heather Adams, Assistant Attorney General. The hearing was tape recorded. The hearing was open to the public, pursuant to Iowa Code section 272C.6(1)(1999) and 645 IAC 280.206.

After hearing the testimony and examining the exhibits, the Board convened in closed executive session to deliberate their decision, pursuant to Iowa Code section 21.5(1)(f)(1999). Deliberations continued on October 6, 1999. The administrative law judge was instructed to prepare Findings of Fact, Conclusions of Law, Decision and Order, in accordance with the Board's deliberations.

THE RECORD

The record includes the Notices of Hearing and the following exhibits:

- State Exhibit A: Iowa Code section 147.4
- State Exhibit B: Iowa Code section 147.55
645 IAC 280.212(1996)
645 IAC 280.213(1996)
- State Exhibit C: Application and accompanying materials
- State Exhibit D: Denial Letter, 12/29/98
- State Exhibit E: Telephone Records

State Exhibit F: Letter dated 10/1/96 (Ruppel to LeMont)

Applicant Exhibit 1: Letter dated 7/11/99 (LeMont to Board)

Applicant Exhibit 2: E-Mail, 6/28/99 (Leverington, MSW)

Applicant Exhibit 3: Letter dated 7/9/99 (Garlinghouse, LBSW to Board)

Applicant Exhibit 4: Letter dated 11/23/96 (Ruppel)

FINDINGS OF FACT

1. On June 30, 1998, the Applicant filed her application for licensure to practice as a social worker at the bachelor's level. The application was denied on the grounds that the validator was unable to state that the Applicant adhered to the social work code of ethics. (Testimony of Applicant; State Exhibits C, D)

2. The Applicant received a Bachelor of Arts degree in Psychology from Mount Mercy College in May 1986. (State Exhibit C, p.9)

3. In her application, the Applicant listed the following social work experience:

a) Caseworker II, Lutheran Social Services, June 1997 to the present.

b) Family Counselor, Families, Inc., August 1988 to October 1996.

(State Exhibit C)

4. The application requires that employment hours must be validated by a licensed independent social worker. The Applicant asked the Board to send the verification form to Barbara Ruppel, Executive Director, Families, Inc. The validation form was filled out by Barbara Ruppel and returned to the Board on September 4, 1998. Ms. Ruppel validated the Applicant's hours of employment. However, in response to the question, "Do you believe the applicant adhered to the social work code of ethics?", Ms. Ruppel answered no. (State Exhibit C)

5. The Board requested Ms. Ruppel to provide an explanation for her response. On November 30, 1998, the Board received a letter from Ms. Ruppel. She provided two reasons for her response that the Applicant did not adhere to the code of ethics. The first reason was that after the Applicant left Families, Inc. on October 15, 1996, she continued to use the agency issued telephone credit card. Families, Inc. had documented \$145.79 in call charges made

by the Applicant between August 1997 and July 1998. The second reason was that the agency's Clinical Director had received several comments from referring workers suggesting that the Applicant did not see clients when she said that she did. (State Exhibit C)

6. Ms. Ruppel testified at the hearing concerning the unauthorized use of the agency telephone credit card by the Applicant after she left their employment.

a) The Applicant was laid off by Families, Inc., effective October 15, 1996, due to decreased work under the DHS contract.

b) In July or August 1998, a new bookkeeper for the agency discovered that the Applicant continued to use her agency issued telephone credit card.

c) On September 30, 1998, Ms. Ruppel wrote to the Applicant and told her that her credit card usage had been discovered and enclosed billing records from August 1997 to June 1998. Ms. Ruppel requested payment of \$145.79. The Applicant did not respond.

d) At the hearing, Ms. Ruppel provided telephone records documenting the Applicant's unauthorized credit card usage.

(Testimony of Barbara Ruppel; Applicant; State Exhibit E, F)

7. Ms. Ruppel also testified that after the Applicant left the employment of Families, Inc., more than one person told her that they believed that the Applicant did not always see clients for the time that she billed. Ms. Ruppel did not have any documentation concerning this and was unable to provide any specific information. (Testimony of Barbara Ruppel)

8. The Applicant denied that she ever billed clients without seeing them. The Applicant admits that she continued to use her agency credit card for personal long distance telephone calls after she was laid off by Families, Inc. She testified that in her opinion, she was laid off by Families, Inc. "out of the blue." She was devastated and upset about being laid off after eight years of employment, and she still does not understand why it happened. She testified that this is probably why she did not respond to Ms. Ruppel's letter to her. She could not provide an explanation for her continued use of the credit card. She testified that she realized that it was inappropriate, but did not realize that it constituted a breach of social work ethics. The Applicant brought a check in the amount of \$145.79 to the hearing and offered to pay the agency back. (Testimony of Applicant; Applicant Exhibit 1)

9. The Applicant is currently employed by Lutheran Social

Services as a Caseworker III. The Applicant submitted a letter of recommendation from her supervisor. (Testimony of Applicant; Applicant Exhibit 3)

CONCLUSIONS OF LAW

In 1996, the Iowa legislature passed legislation mandating licensure for social workers in Iowa and specifying requirements for three levels of permanent licensure: bachelor social worker, master social worker, and independent social worker. Iowa Code section 154C.3. Requirements for licensure at the bachelor level include possession of a bachelor's degree in social work and an examination. Iowa Code section 154C.3(1)(a)(1997).

However, the legislature also provided transitional or grand-parenting provisions for applicants who have practiced social work for a certain period of time at a certain level. These transition provisions are found at Iowa Code section 154C.6 and allow exemptions from certain license requirements for qualified applicants who submit their applications prior to July 1, 1998. The Applicant has applied for licensure at the bachelor level under these transition provisions.

Iowa Code section 154C.6(1)(1997) provides, in relevant part:

154C.6 Transition provisions-exemption from certain license requirements.

Notwithstanding section 154C.3, the board shall issue a license as a bachelor social worker, master social worker, or independent social worker to an applicant applying for a license prior to July 1, 1998, who meets the following requirements in addition to paying all fees required by the board:

1. *Bachelor social worker.* An applicant for a license as a bachelor social worker shall present evidence satisfactory to the board of either of the following:

...

b. That the applicant possesses an undergraduate degree from an accredited college or university and has four thousand hours of employment experience in the practice of social work.

The Applicant possesses an undergraduate degree from an accredited college. She submitted a verification of 4000 hours of employment experience. However, in response to the question on the verification form "Do you believe that the applicant adhered to the social work code of ethics?", the validator answered "no."

Iowa Code section 147.4 provides that the department of public health may refuse to grant a license to practice a profession to

any person otherwise qualified upon any of the grounds for which a license may be revoked or suspended.

Iowa Code section 147.55(3) provides that a license to practice a profession shall be revoked or suspended when the licensee is guilty of...knowingly making misleading, deceptive, untrue or fraudulent representations in the practice of a profession or engaging in unethical conduct or practice harmful or detrimental to the public.

The rules promulgated by the Board also provide grounds for disciplining the license of a social worker. They include, in relevant part:

280.212(3) Knowingly making misleading, deceptive, untrue or fraudulent representations in the practice of a profession or engaging in unethical conduct or practice harmful or detrimental to the public. Proof of actual injury need not be established.

...
280.212(15) Unethical business practices, consisting of any of the following:

...
c. Falsifying a client's records.
...

The Rules of Conduct for social workers are found at 645 IAC 280.213. They provide, in relevant part:

645-280.213(154C) Rules of conduct.

280.213(1) *Misrepresentations, disclosure.* A licensee shall not:

...
g. Engage in professional activities, including advertising, involving dishonesty, fraud, deceit, or misrepresentation.

The issue before the Board is whether the application should be denied because the Applicant's activities while employed as a social worker would have provided cause for the Board to discipline her, pursuant to the above cited statute and rules, if she had been licensed.

The preponderance of the evidence did not establish that the Applicant billed for time spent with clients when in fact she did not see the clients. The Applicant denied this allegation, and the evidence consists solely of hearsay statements of very general allegations; no specific information was offered. The record is inadequate to establish a violation.

The preponderance of the evidence did establish that the Applicant repeatedly used her agency telephone credit card for personal long distance calls, long after her employment with the agency had been terminated. The telephone and employment records established this, and the Applicant admits that she continued to use the credit card after she left the agency.

The Applicant's continued use of the agency telephone credit card, after her employment with the agency was terminated, was unethical, constitutes dishonesty, fraud, and deceit in professional activities, and violates Iowa Code section 147.55(3), the Code of Conduct, and other provisions of the Board's rules. 645 IAC 280.212(3); 280.213(1)"g". Based on this violation, the Board has sufficient grounds to deny the application for a bachelor license. However, the Board is willing to delay its action on this application in order to give the Applicant the opportunity to demonstrate that she has taken sufficient steps to remediate this violation. In addition, the Applicant must demonstrate to the Board that she has a full understanding of the Social Work Code of Conduct and is willing and able to fully abide by it.

ORDER

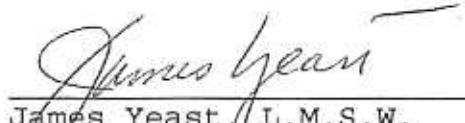
IT IS THEREFORE ORDERED, that the application for a license to practice social work at the bachelor level, filed by Connie M. LeMont, shall remain pending before the Board for a period of one year. During this one year interim, the Applicant must comply with the following conditions:

- A. Provide proof to the Board that she has repaid her former employer \$145.79 for her personal use of the agency telephone credit card.
- B. Make a personal appearance before the Board in which she orally demonstrates a thorough understanding of the Social Work Code of Conduct.
- C. Provide proof to the Board that she has notified her current employer, and any other social work employer during the one year interim, of her inappropriate use of the telephone credit card.
- D. No further reports of unethical conduct by the Respondent during the one year period.

At the end of the one year period, the Board will again review the pending application for compliance with these conditions. If all of the conditions have been met, the Applicant will be issued a bachelor level license.

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Dated this 11th day of October , 1999.



James Yeast, L.M.S.W.
Chairperson
Iowa Board of Social Work Examiners

cc: Heather Adams
Assistant Attorney General

Any appeal to the district court from disciplinary action of the board or denial of license shall be taken within 30 days from the issuance of the decision by the board. It is not necessary to request a rehearing before the board to appeal to the district court. 645 IAC 280.208. The party who appeals a decision of the board to the district court shall pay the cost of the preparation of a transcript of the administrative hearing for the district court. 645 IAC 280.209.